WORLD TRADE ORGANIZATION

G/TBT/N/EU/1243

5 October 2026

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Page: 1/2

Committee on Technical Barriers to Trade

Original: English

NOTIFICATION

The following notification is being circulated in accordance with Article 10.6

1.	**Notifying Member:** EUROPEAN UNION **If applicable, name of local government involved (Articles 3.2 and 7.2):**
2.	**Agency responsible:** European Commission EU-TBT Enquiry Point, Fax: +(32) 2 299 80 43, E-mail: grow-eu-tbt@ec.europa.eu Website: https://technical-barriers-trade.ec.europa.eu/en/home
3.	**Notified under Article 2.9.2 [X], 2.10.1 [ ], 5.6.2 [ ], 5.7.1 [ ], 3.2 [ ], 7.2 [ ], Other:**
4.	**Products covered (HS codes or national tariff lines. ICS numbers may be provided in addition, where applicable):** Biocidal products
5.	**Details of notified document(s) (title, number of pages and languages, means of access):** Draft Commission Implementing Decision not renewing the approval of bromoacetic acid as an active substance for use in biocidal products of product-type 4 in accordance with Regulation (EU) No 528/2012 of the European Parliament and of the Council; (4 page(s), in English) **Link to notified document(s) and/or contact details for agency or authority which can provide copies upon request:** https://members.wto.org/crnattachments/2026/TBT/EEC/26_05201_00_e.pdf https://members.wto.org/crnattachments/2026/TBT/EEC/26_05201_01_e.pdf European Commission EU-TBT Enquiry Point Fax: + (32) 2 299 80 43 E-mail: grow-eu-tbt@ec.europa.eu The text is available on the Website: https://technical-barriers-trade.ec.europa.eu/en/home
6.	**Description of content:** This draft Commission Implementing Decision does not renew the approval of bromoacetic acid for use in biocidal products of product-type 4. On 22 December 2023, an application was submitted in accordance with Article 13(1) of Regulation (EU) No 528/2012 for the renewal of the approval of bromoacetic acid for use in biocidal products of product-type 4. On 8 April 2026, the applicant informed the evaluating competent authority that it withdrew their application for the renewal of approval of bromoacetic acid for product-type 4. The draft Decision will therefore propose to not renew the approval of bromoacetic acid for product-type 4.

	In order to allow sufficient time for economic operators to adapt, treated articles treated with or incorporating bromoacetic acid for use in biocidal products of product-type 4 may be placed on the market for a period of 180 days after the entry into force of this Decision.
7.	**Objective and rationale, including the nature of urgent problems where applicable:** Harmonisation of the EU market on biocidal products.; Protection of human health or safety; Protection of the environment
8.	**Relevant documents:** Regulation (EU) No 528/2012 of the European Parliament and of the Council of 22 May 2012 concerning the making available on the market and use of biocidal products (OJ L 167, 27.6.2012, p. 1.). Available in all EU languages. EUR-Lex - 32012R0528 - EN - EUR-Lex (europa.eu)
9.	**Proposed date of adoption:** February 2027 **Proposed date of entry into force:** 20 days from publication in the Official Journal of the EU
10.	**Provision of comments** **Final date for comments:** 4 December 2026 **[X] 60 days from notification** **Contact details of agency or authority designated to handle comments regarding the notification:** European Commission, EU-TBT Enquiry Point, Fax: + (32) 2 299 80 43, E-mail: grow-eu-tbt@ec.europa.eu